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June 2, 2026

VIA EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, SW, Room 112-A
Washington, DC 20436

Re: *In the Matter of Certain Smart Wearable Devices*, Inv. No. 337-TA-1478

Dear Secretary Barton:

In accordance with Ground Rule 7.3, Oura Health Oy Respondents hereby files their demonstrative exhibits that they intend to use in the Claim Construction hearing.

Respectfully Submitted,

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy.*

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S
CLAIM CONSTRUCTION DEMONSTRATIVE EXHIBITS**

Respondents' *Markman* Presentation

*In the Matter of
Certain Smart Wearable Devices*

Investigation No. 337-TA-1478

June 3, 2026

United States Patent No. 10,231,675

The '675 Patent – Claim 13

“acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” ('675 Patent, Claim 13)

Respondents' Construction

Indefinite

Complainants' Construction

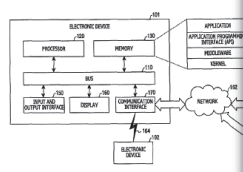
Within this phrase, “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” means: “second period of time which begins: (i) before the first period of time has ended when it is determined that the electronic device is worn, or (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn”

The Dispute:

Whether a skilled artisan can define the first and second periods of time for which the temporal comparison of “shortly before” or “immediately after” must be assessed.

13. A method comprising:

- determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
- acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
- activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
- detecting a biometric information of the user using the activated at least one second sensor;
- during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and
- in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.



Turning On/Off the Second Sensor



Dr. Young

Q. Do you agree that the claims in dispute in the '675 patent relate to turning on a biometric sensor?

A. If I remember correctly it talks about turning on a -- a second sensor. . . .

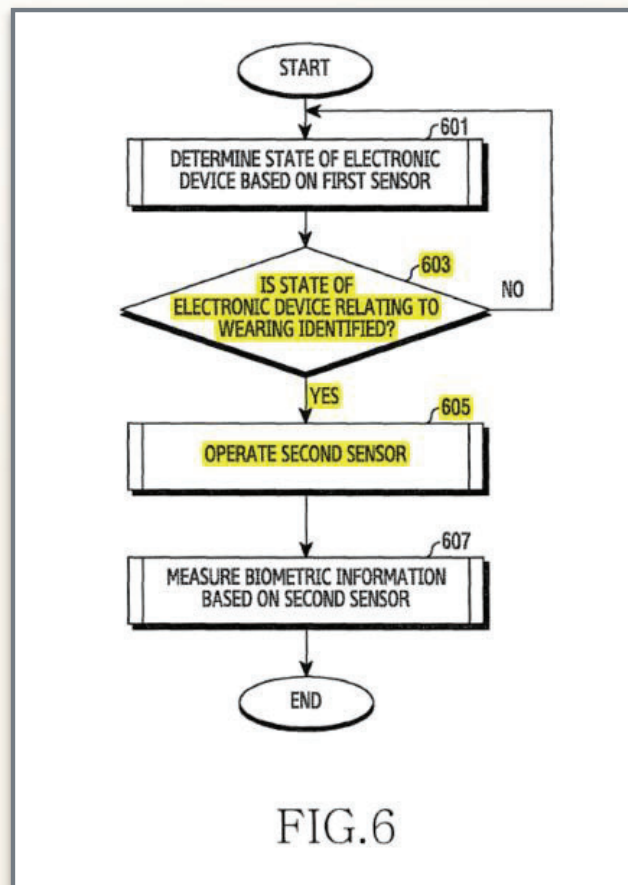
Young Depo. at 21:24-22:7

Q. Do you agree that the claims in dispute in the '675 patent relate to turning off a second sensor?

A. I think one of the limitation in -- if I remember correctly, it's claim 13; right? -- is related to turning off the second sensor during the second period of time if the detect of motion is -- is high or above a threshold.

Young Depo. at 22:24-23:6

The '675 Patent – Figure 6



'675 Patent at Fig. 6

FIG. 6 is a flowchart illustrating a biometric information measurement operation of an electronic device (e.g., the electronic device 101, the processor 120 of the electronic device 101, the processor 500, or the electronic device 400) according to various embodiments of the present disclosure.

'675 Patent at 23:20-24

When it is identified in operation 603 that the state of the electronic device relating to wearing corresponds to the selected (or specified) state (e.g., when the state of the electronic device corresponds to a wearing state), the electronic device (e.g., the processor 120 or 500) may operate at least one second sensor (e.g., the sensor module 470 or the biometric sensor 240I) in operation 605.

'675 Patent at 23:53-59

The '675 Patent - Figure 5B

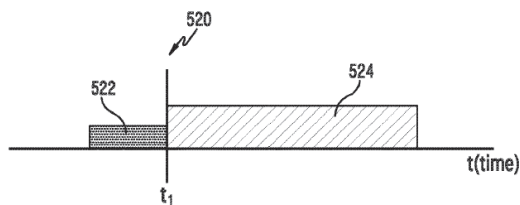


FIG.5B

'675 Patent at Fig. 5B

FIG. 5B is a view illustrating an operation of measuring **biometric information** by an electronic device

Referring to FIG. 5B, the electronic device . . . may attempt to measure **biometric information** according to a period (e.g., about 1 minute) having a selected (or specified) period of time. According to an embodiment, the electronic device . . . **may operate a first timer** that represents a selected (or specified) period of time in order to determine when to attempt to measure **biometric information**. For example, the electronic device . . . may attempt to measure **biometric information** at every 1 minute by operating the first timer.

'675 Patent 19:30-45

Figure 5B Relates to Measuring Biometric Information



Dr. Young

- Q. Do you agree that Figure 5B illustrates an operation of measuring biometric information by an electronic device?
- A. Yeah. I think that's what the document says; right? [As Read] "**Figure 5B** is a view illustrating **an operation of measuring biometric information** by an electronic device according to various embodiment of the present disclosure." So I'm just kind of reading from column 2 of the specification where it -- it -- it describes, you know, what Figure 5B does.

Young Depo. at 38:5-17

Figure 5B – Time Interval 522

Time Interval 522 is Not the “First Period of Time” when it is Determined that a Device is Worn, Rather it is the Interval when the Second Information is Acquired

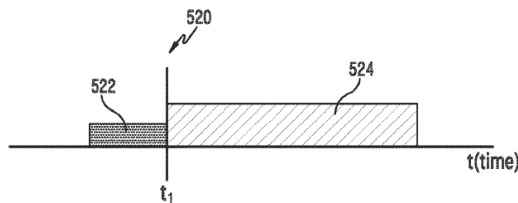


FIG.5B

'675 Patent at Fig. 5B

According to various embodiments, the electronic device . . . may measure the motion of the electronic device in at least one time interval 522 before the operation of the first timer ends (520) (e.g., for about 10 seconds before the operation of the first timer ends), and **when the operation of the first timer ends**, the electronic device . . . may determine whether at least a part of the measured motion satisfies a selected (or specified) reference. For example, the electronic device . . . may measure the average of the motion that is acquired in at least one time interval 522 before the first timer ends, and may determine whether the measured average of the motion is less than, or equal to, a selected (or specified) threshold value.

'675 Patent 19:46-59

Figure 5B – Time Interval 522

Time Interval 522 is Not the “First Period of Time” when it is Determined that a Device is Worn, Rather it is the Interval when the Second Information is Acquired

13. A method comprising:
determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
detecting a biometric information of the user using the activated at least one second sensor;
during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and
in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

According to various embodiments, the electronic device . . . may measure the motion of the electronic device in at least one time interval 522 before the operation of the first timer ends (520) (e.g., for about 10 seconds before the operation of the first timer ends), and when the operation of the first timer ends, the electronic device . . . may determine whether at least a part of the measured motion satisfies a selected (or specified) reference. For example, the electronic device . . . may measure the average of the motion that is acquired in at least one time interval 522 before the first timer ends, and may determine whether the measured average of the motion is less than, or equal to, a selected (or specified) threshold value.

'675 Patent 19:46-59

Figure 5B – Time 524

Time 524 is Not the “Second Period of Time” when the Device Continues to Measure Motion Before Activating the Second Sensor, Rather it is a Time when the Device Determines whether the Device Motion has Changed

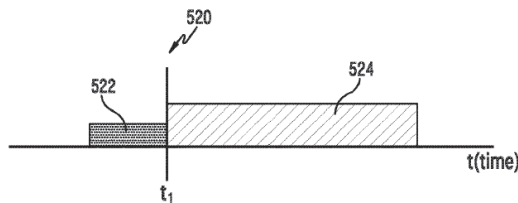


FIG. 5B

'675 Patent at Fig. 5B

According to various embodiments, when the measured motion of the electronic device does not satisfy the selected (or specified) reference, the electronic device . . . may determine whether the motion of the electronic device is changed to satisfy the selected (or specified) reference for the time 524 (e.g., about 30 seconds) during which a second timer operates. According to an embodiment, the electronic device . . . may not measure biometric information when the previously measured motion (e.g., the average of the motion) is maintained at a threshold value or more.

'675 Patent 19:65-20:8

Figure 5B – Time 524

Time 524 is Not the “Second Period of Time” when the Device Continues to Measure Motion Before Activating the Second Sensor, Rather it is a Time when the Device Determines whether the Device Motion has Changed

13. A method comprising:
determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;
detecting a biometric information of the user using the activated at least one second sensor;
during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and
in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

According to various embodiments, when the measured motion of the electronic device does not satisfy the selected (or specified) reference, the electronic device . . . may determine whether the motion of the electronic device is changed to satisfy the selected (or specified) reference for the time 524 (e.g., about 30 seconds) during which a second timer operates. According to an embodiment, the electronic device . . . may not measure biometric information when the previously measured motion (e.g., the average of the motion) is maintained at a threshold value or more.

'675 Patent 19:65-20:8

Figure 5B – Alleged First and Second Periods

Here, as quoted below, Claim 13 itself defines (1) the “first period” as a period where “motion” is measured for the purpose of “determining whether an electronic device is worn,” as shown in the claim’s first step and parts of the second step (identified in red), and (2) the “second period” as a period where “motion” is also measured, but for a different purpose of deciding whether to “activat[e] at least one second sensor” based on that motion, in the second and third steps (identified in blue):

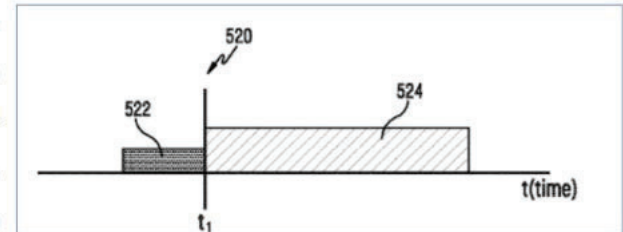
13. A method comprising:
 determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;
 acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;
 activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;

...

Complainants' Responsive Br. at 4

Aspects of the above passage in column 20 are further described in other passages and figures, such as Figure 5B's timing diagram below, which illustrates two consecutive first and second timing intervals 522 and 524, in which a device's motion is measured. *Id.* at 19:47-49, 20:13-16. In the first interval 522, which corresponds to the “first period” or part of that period,

the device uses a first motion sensor to measure “motion” for one purpose, such as detecting whether the



device is worn. Compl. Op. Br., Ex. 6 (Young Decl.) ¶ 33. The specification elaborates on how wear detection works in this first interval or period, stating that “when the motion of the electronic device is detected through, for example,” a motion sensor (such as “an acceleration sensor, a terrestrial magnetism sensor, or a gyro sensor”), the device may then determine that it “has been worn on a user’s body.” Compl. Op. Br., Ex. 1 (’675 Patent) at 16:48-52. Then, in the second interval 524, which corresponds to the “second period,” the device continues to measure motion for a different purpose of deciding whether to activate another “sensor (e.g., biometric sensor) for measuring biometric information when the measured motion of the electronic device satisfies a selected (or specified) reference.” *Id.* at 20:25-29.

Complainants' Responsive Br. at 5

Complainant Seeks To Rewrite Claim 13

The Claim as Written Does Not Focus on the End of the First Period of Time

13. A method comprising:

* * *

acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;

15. A method of claim 13, further comprising:

acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and
activating the at least one second sensor based on at least a part of the additional information.

According to various embodiments, an electronic device may include a memory and a processor electrically connected to the memory. According to an embodiment, the memory may store instructions that configure the processor to: determine whether the electronic device is worn on (or close to) a part of a user's body using at least one first sensor; activate (operate or trigger) at least one second sensor based on at least a part of the motion of the electronic device within a selected (specified) time range at the time when a selected (or specified) period of time passes in a case where the electronic device is worn on (or close to) a part of the user's body; and measure the user's biometric information through the at least one second sensor.

'675 Patent at 22:25-37

“shortly before and/or immediately after”

The Term “Shortly Before” Does Not Allow for an Overlap Between the First and Second Periods of Time as Alleged by Complainant



Dr. Young

- Q. And then what is your understanding of the differences between the words “before” and “after”?
- A. I think I kind of answered that question when you asked me after and before on the separate basis; right? If you have a time reference, then “after” means you’re after the time reference; right? And “before” means before that time reference.

Young Depo. at 31:17-25 (objection omitted)

Complainants' Modified Figure 5B

Figure 5B Does Not Relate to Wear Detection and Complainant's Modification is Unsupported by the Intrinsic Record

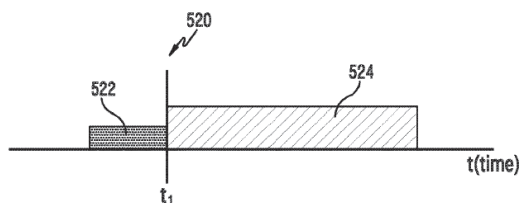
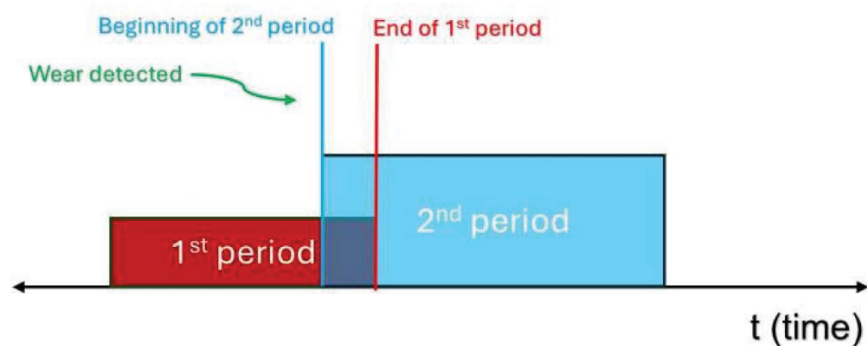


FIG. 5B

'675 Patent at Fig. 5B



Complainants' Op. Br. at 9

Improper to Rewrite Claims

Kee-Vet also cites this case but has apparently not taken adequate notice of that section's several times repeated statement to the effect that **this court has consistently adhered to the proposition that courts cannot alter what the patentee has chosen to claim as his invention, that limitations appearing in the specification will not be read into claims, and that interpreting what is *meant* by a word *in* a claim "is not to be confused with adding an extraneous limitation appearing in the specification, which is improper."**

Intervet America, Inc. v. Kee-Vet Laboratories, Inc.,
887 F.2d 1050, 1053 (Fed. Cir. 1989)

The district court thus read, via the specification, the "45°>>" limitation of narrower claim 2, and the "vertical" limitation of narrower claim 3, into broader claim 1 and the other asserted claims. **It is settled law that when a patent claim does not contain a certain limitation and another claim does, that limitation cannot be read into the former claim in determining either validity or infringement.**

SRI Intern. v. Matsushita Elec. Corp. of Am.,
775 F.2d 1107, 1122 (Fed. Cir. 1985)

Complainants' Varying Descriptions of the “First Period”

- “[A] period of time when the electronic ring is not being worn.” Respondents Br. at Ex. 2 (Samsung’s March 16, 2026 Infringement Contentions) at 8.
- “[W]hen the device uses the ‘first sensor’ to detect whether it is being worn on the user’s body.” Complainants Br. at 6.

Respondents’ Responsive Br. at 11

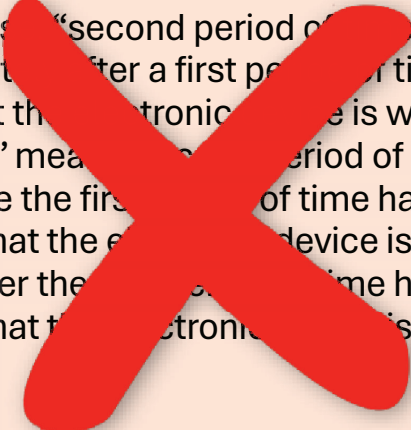
Complainants' Varying Descriptions of the "Second Period"

- The period of time immediately before the third period of time, which is "the period of time ending after the user wakes up." Respondents Br. at Ex. 3 (Samsung's March 16, 2026 Infringement Contentions) at 8. *Respondents' Op. Br. at Ex. 3 at 36-37.*
- "[W]hen the same 'first sensor' is used to acquire motion information for the electronic device, which in turn helps determine whether to activate a 'second sensor.'" Complainants Br. at 6.
- "[T]he period of time shortly before or immediately after it is determined that the electronic device is worn on a part of the user's body." Respondents Br. at Ex. 2 (Samsung's March 16, 2026 Infringement Contentions) at 8.

Respondents' Responsive Br. at 11

The '675 Patent – Claim 13

“acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” ('675 Patent, Claim 13)

Respondents' Construction	Complainants' Construction
Indefinite	Within this phrase “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” means a period of time which begins: (i) before the first period of time has ended when it is determined that the electronic device is worn, or (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn” 

The '675 Patent – Claim 15

“acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information” ('675 Patent, Claim 15)

Respondents' Construction

Indefinite

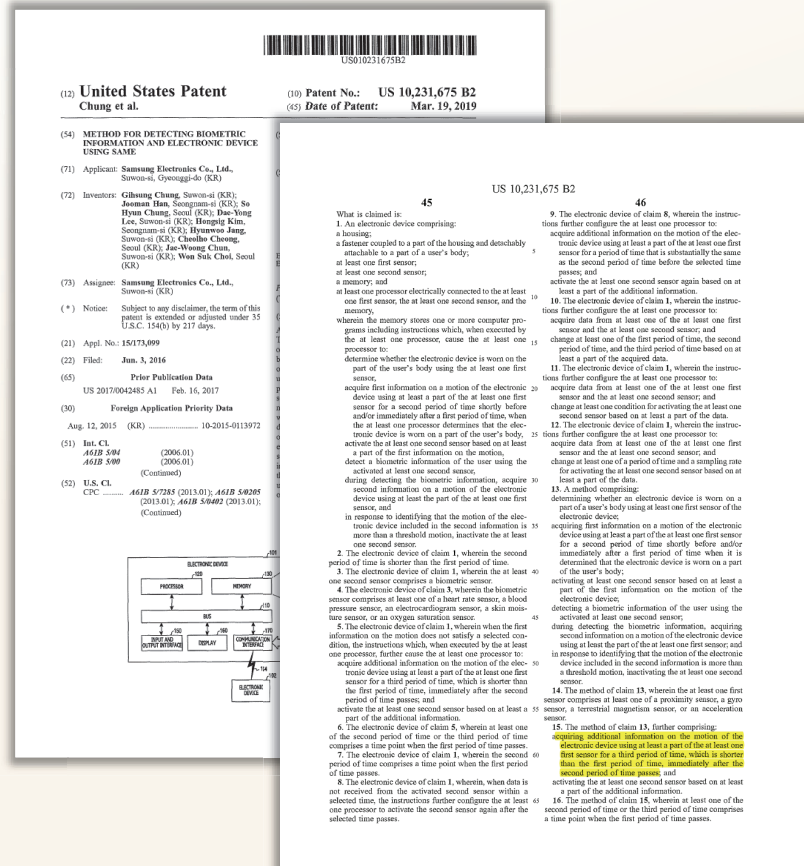
Complainants' Construction

Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”

The Dispute:

Whether a skilled artisan can define the objective boundaries of the first period of time such that the temporal relationship between the first and third periods of time can be assessed.

The '675 Patent – Claim 15



The Third Period of Time Lacks Objective Boundaries

The Third Period of Time is Only Disclosed as Being Shorter than the Indefinite First Period of Time

According to various embodiments, the instructions may be set to configure the processor to: acquire additional information on the motion of the electronic device using at least a part of the at least one first sensor **for a third period of time, which is shorter than the first period of time**, immediately after the second period of time passes

'675 Patent at 21:41-46

According to various embodiments, at least one of the second period of time and the third period of time may be set to include the time point when the first period of time passes.

'675 Patent at 21:51-54

15. A method of claim 13, further comprising:
acquiring additional information on the motion of the electronic device using at least a part of the **at least one first sensor for a third period of time, which is shorter than the first period of time**, immediately after the second period of time passes; and
activating the at least one second sensor based on at least a part of the additional information.

Figure 5B – Second and Third Periods of Time

Complainant Inconsistently Alleges that Figure 5B Illustrates the Relationship Between the First and Second Periods of Time and the Relationships Between the Second and Third Periods of Time

15. The method of claim 13, further comprising
acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor *for a third period of time*, which is shorter than the first period of time, immediately after the second period of time passes; and
activating the at least one second sensor based on at least a part of the additional information.

The relationship between the “second” and “third” periods, as recited in Claims 13 and 15, is confirmed by the specification. In the context of Figure 5B (excerpted in Section IV.A.1 for the prior term), the specification explains that in *both* back-to-back time periods 522 and 524, the device measures motion and “may operate at least one sensor (e.g., biometric sensor) for measuring biometric information when the measured motion of the electronic device satisfies a selected (or specified) reference.” See ’675 Patent at 19:46-64, 20:14-29.

Complainants’ Op. Br. at 12

Complainants' Varying Descriptions of the “Third Period”

- The “period of time beginning immediately after the second period of time (e.g., the period of time ending after the user wakes up).” Respondents Br. at Ex. 3 (Samsung’s March 16, 2026 Infringement Contentions) at 36.
- The “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor.” Complainants Br. at 10.
- The period of time that “the devices uses further information about the measured motion to decide whether to reactive the ‘second sensor,’ after it was inactivated in Claim 13’s last step.” Complainants Br. at 11.

Respondents’ Responsive Br. at 13

The '675 Patent – Claim 15

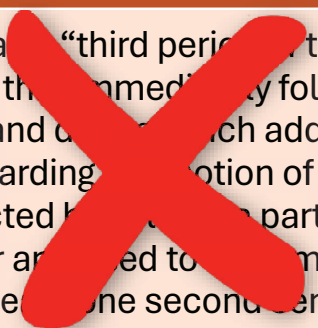
“acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information” ('675 Patent, Claim 15)

Respondents' Construction

Indefinite

Complainants' Construction

Within this phrase “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”



United States Patent No. 10,642,359

The '359 Patent – Claim 14

“biometric signal” ('359 Patent, Claim 14)

Respondents' Construction

Correcting “the biometric signal” to be “a biometric signal” and applying the plain and ordinary meaning (i.e., a signal relating to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight).

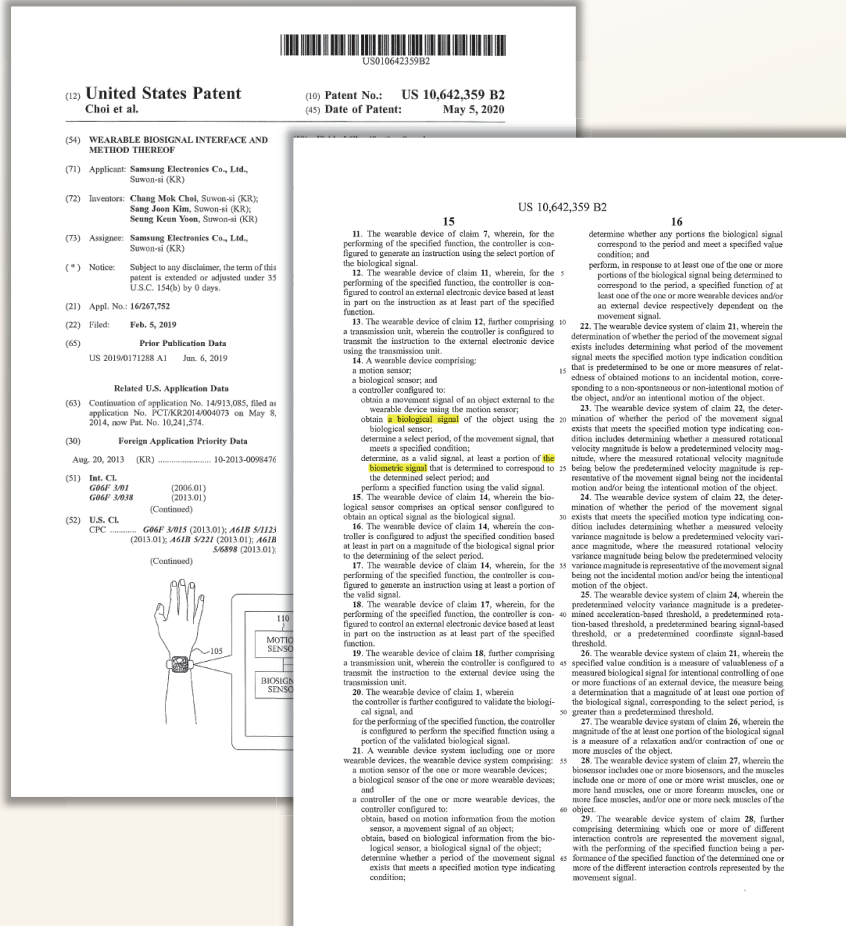
Complainants' Construction

Correcting “the biometric signal” to be “the biological signal” and applying the plain and ordinary meaning (i.e., a signal that is associated with biological information of the user).

The Dispute:

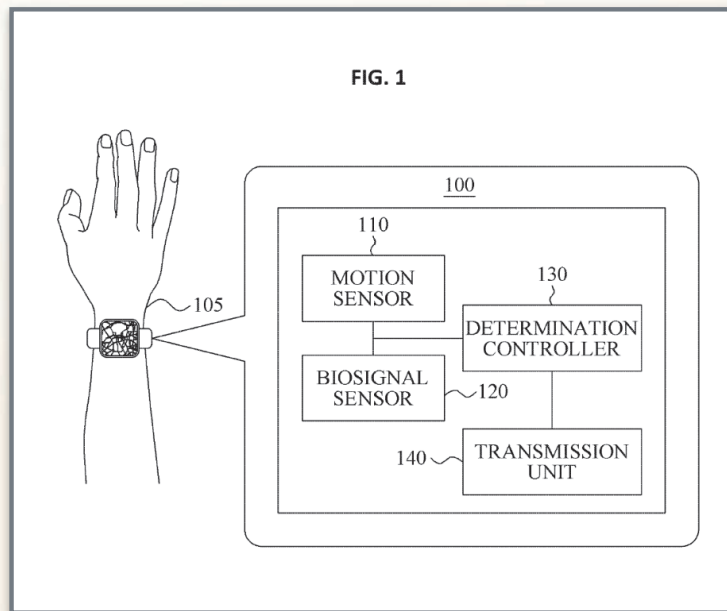
Whether the antecedent basis issue should be corrected by rewriting and broadening the scope of the claim by eliminating the required “biometric signal”.

The '359 Patent – Claim 14



14. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
obtain a movement signal of an object external to the
wearable device using the motion sensor;
obtain a biological signal of the object using the
biological sensor;
determine a select period, of the movement signal, that
meets a specified condition;
determine, as a valid signal, at least a portion of the
biometric signal that is determined to correspond to the
determined select period.

The '359 Patent – Claim 14



'359 Patent at FIG. 1

14. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
obtain a movement signal of an object external to the
wearable device using the motion sensor;
obtain a biological signal of the object using the
biological sensor;
determine a select period, of the movement signal, that
meets a specified condition;
determine, as a valid signal, at least a portion of the
biometric signal that is determined to correspond to the
determined select period.

The Focus of Claim Construction is the Actual Words of the Claim

We begin our claim construction analysis, as always, with the words of the claim. The claim language defines the bounds of claim scope. “[T]he claims define the scope of the right to exclude; the claim construction inquiry, therefore, begins and ends in all cases with the actual words of the claim.” “[T]he language of the claim frames and ultimately resolves all issues of claim interpretation.”

The words used in the claims are interpreted in light of the intrinsic evidence of record, including the written description, the drawings, and the prosecution history, if in evidence. The intrinsic evidence may provide context and clarification about the meaning of claim terms. “Such intrinsic evidence is the most significant source of the legally operative meaning of disputed claim language.”

In the absence of an express intent to impart a novel meaning to claim terms, an inventor's claim terms take on their ordinary meaning. We indulge a “heavy presumption” that a claim term carries its ordinary and customary meaning. The ordinary meaning of a claim term may be determined by reviewing a variety of sources, including the claims themselves, other intrinsic evidence including the written description and the prosecution history, and dictionaries and treatises. But in any event the ordinary meaning must be determined from the standpoint of a person of ordinary skill in the relevant art.

Teleflex, Inc. v. Ficosa N. Am. Corp.,
299 F.3d 1313, 1324-25 (Fed. Cir. 2002) (citations omitted)

Oura's Proposed Construction of “biometric signal”

A Biometric Signal is a Signal that Relates to the Identification of an Individual Based on Physical Characteristics, Such as Fingerprints, Finger Lengths, Facial Features, Retinal Patterns, Voice Recognition, and Weight



Dr. Rosing

60. The specification describes a biological signal as a signal that relates to “muscle contraction or muscle relaxation of a body part, such as a wrist or a heart.” ’359 Patent at 3:56-58. A POSITA would understand that this is consistent with the meaning of the term “biological signal.” A POSITA would further understand that a biometric signal, consistent with its plain and ordinary meaning, is a signal that relates to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.¹ While biometric information is not expressly disclosed in the specification, a POSITA would understand the need, at least in some instances, to use biometric information to verify the identity of a user prior to allowing control and operation of an external device (e.g., mobile phones, heating thermostats, and entry to vehicles). See ’359 Patent at 6:64-67.

Rosing Decl. at ¶ 60

Oura's Proposed Construction of "biometric signal"

The Meaning of the Term "Biometric Signal" is Undisputed



Dr. Young

- Q. And what is a biometric signal?
- A. A biometric signal is also a signal related to, for example, character and -- characteristics of biological information.
- Q. What types of characteristics?
- A. Right. If you look at, you know, for example, Oura's, you know position looking in the dictionary -- right? -- it talks about, you know -- I do not remember word by word, but I think your document shows, like, a retinal, voice recognition, finger length, things like that.

Young Depo. at 40:12-25 (objection omitted)

Oura's Proposed Construction of “biometric signal”

Complainant Alleges that Oura Relies on “Cherry-Picked Extrinsic Evidence” but Failed to Consider Other Definitions

Complainant Op. Br. at 18



Dr. Young

Q. So you would agree, then, that you did not consider a treatise in preparation of your declaration?

A. That's fair to say.

Young Depo. at 19:24-20:2

Q. Besides the dictionary definitions identified by Oura and Dr. Rosing, did you review any other dictionary definitions?

A. Not that I remember.

Young Depo. at 20:16-19

The '359 Patent Relates to the Control of an External Device

An external device may refer to a device controlled by a command signal, such as a mobile device, a television (TV) screen, a digital versatile disc (DVD) player, a radio, a heating thermostat, a vehicle door, and the like. The command signal may be generated in association with a valid second signal of the wearable biosignal interface 100.

'359 Patent at 6:64-7:2

In another example, the wearable biosignal interface 100 may use a valid second signal (or a second signal determined to be valid) as a signal of a remote controller of a vehicle to start the vehicle or as an ID signal to make a payment.

'359 Patent at 7:26-29

The wearable biosignal interface 100 may operate, using the second signal, an external device such as a mobile device, a TV screen, a DVD, a radio, a heating thermostat, a vehicle door, and the like. . . .

'359 Patent at 8:26-29

To control the external device after the shift to the active mode, the wearable biosignal interface 100 may transmit the command signal based on the second signal determined to be valid to an appliance or a device in order to enable the external device to perform a control operation, using the transmission unit 140. For example, the wearable biosignal interface 100 may transmit a command signal to an appliance such as a TV, an air conditioner, a computer, a refrigerator, and the like, or to a living environment controlling device such as a light, a curtain, a window, a door lock device, and the like. The signal transmission may enable the external device to perform a control operation of the appliance or device such as an ON/OFF operation, an open/close operation, and the like, in accordance with the command signal.

'359 Patent at 7:11-25

The '359 Patent Relates to the Control of an External Device



Dr. Rosing

60. The specification describes a biological signal as a signal that relates to “muscle contraction or muscle relaxation of a body part, such as a wrist or a heart.” ’359 Patent at 3:56-58. A POSITA would understand that this is consistent with the meaning of the term “biological signal.” A POSITA would further understand that a biometric signal, consistent with its plain and ordinary meaning, is a signal that relates to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.¹ While biometric information is not expressly disclosed in the specification, a POSITA would understand the need, at least in some instances, to use biometric information to verify the identity of a user prior to allowing control and operation of an external device (e.g., mobile phones, heating thermostats, and entry to vehicles). See ’359 Patent at 6:64-67.

Rosing Decl. at ¶ 60

The '359 Patent Relates to the Control of an External Device



Dr. Young

- Q. In the context of the '359 patent, what does it mean to control an external device?
- A. If I remember correctly, the '359 patent talks about using biological signals -- for example, the muscle relaxation or contraction signals; for example, the EMG signal -- to control electronic devices or external electronic devices. And if I remember correctly, it talks about maybe remote control of TV, remote control of DVD as examples. But there could be, you know, many other controlling function -- right? -- that can be -- that can be performed by using the biological signal from the user under his or her intention.

Young Depo. at 27:21-28:9

Complainant Ignores the Claim Language

Complainant Asserts that Oura's Construction Fails to Consider Intrinsic Sources But Ignores that the Claim Recites "Biometric Signal"

Oura pays no heed to these intrinsic sources and instead asserts that Samsung's correction improperly "change[s] the term and its meaning." But it is Oura, not Samsung, that seeks to change the meaning of the term to manufacture a non-infringement argument based on a concept nowhere even discussed in the intrinsic record, namely the "identification of an individual." Resp. Op. Br. at 18-19. Oura's attempt to wholesale change the claimed invention should be rejected.

Complainants' Responsive Br. at 12

14. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
obtain a movement signal of an object external to the wearable device using the motion sensor;
obtain a biological signal of the object using the biological sensor;
determine a select period, of the movement signal, that meets a specified condition;
determine, as a valid signal, at least a portion of the **biometric signal** that is determined to correspond to the determined select period.

Complainant Improperly Seeks to Broaden the Scope of the Claim

A Biological Signal is Not Merely a Signal that is Associated with Biological Information of the User, Rather it is a Signal that Relates to Muscle Contraction or Muscle Relaxation of a Body Part, Such as a Wrist or a Heart

For example, a sensor may include a biosensor that may be attached to a body part of a living being or living organism such as, for example, a wrist or a forearm of a person, in order to obtain a biological or physiological signal. For example, a biosensor may be able to detect signals generated by muscle contraction or muscle relaxation of a body part, such as a wrist or a heart. Herein, such a sensor may refer to as a biosignal sensor. A biosignal sensor may detect biological information from a target and may convert the biological information into a signal waveform to generate a biosignal. Such a biosignal sensor may include a photo sensor, a piezoelectric sensor, a force sensor, an electromyogram (EMG) sensor, and the like.

'359 Patent at 3:52-64

The biosignal sensor 120 may be in contact with the target 105 and may obtain the second signal generated by at least one of muscle contraction and muscle relaxation. In the event that the target 105 is a wrist, the biosignal sensor 120 may detect the second signal generated by the muscle contraction or muscle relaxation of the wrist.

'359 Patent at 5:20-25

The biosignal sensor 120 may include at least one biosensor that may detect the second signal from a muscle of the target 105, and may monitor the contraction or relaxation of the muscle using the at least one biosensor. The biosensor may be a photo sensor, a piezoelectric sensor, a force sensor, an electromyogram (EMG) sensor, and the like.

'359 Patent at 5:29-34

Complainant Improperly Seeks to Broaden the Scope of the Claim

A Biological Signal is Not Merely a Signal that is Associated with Biological Information of the User, Rather it is a Signal that Relates to Muscle Contraction or Muscle Relaxation of a Body Part, Such as a Wrist or a Heart



Dr. Rosing

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Rosing Decl. at ¶ 60

Complainants' Cited Case Law is Distinguishable

1. A releasable connection for a downhole tool string, comprising
a first part comprising an external connection profile; and
a second part comprising:

* * *

a releasable engagement profile which internally engages
the connection profile of the first part and which is
configured to expand radially to release the connection
profile of the first part;

a locking piston positioned within an internal cavity of
the second part, the locking piston configured to move
axially along the second part between a locking
position that directly constrains the releasable
engagement profile into engagement with the
connection profile of the first part and a release
position that permits the releasable engagement profile
to expand radially to release the connection profile of
the second first part;

See Canatex Completion Sols., Inc. v. Wellmatics, LLC,
159 F.4th 39, 42, 49 (Fed. Cir. 2025)

29. A method for designing a micromechanical device
comprising

* * *

wherein said designing of the inner structure comprises
determining at least two n-dopants, n-dopant
concentrations and/or crystal orientations of n-doped
material, and their relative volumes in the distinct
regions of the semiconductor element so that the
overall temperature drift of the generalized stiffness of
the semiconductor element is less than 50 ppm over a
temperature range of the semiconductor element
that extends at least 100° C.

30. The method for designing a micromechanical
device according to claim 29, wherein the
determining is done so that the overall temperature
drift of the generalized stiffness of the
semiconductor element is less than 10 ppm on the
temperature range of 100° C.

See VTT Tech. Research Centre of Finland Ltd. v. SiTime Corp.,
No. 4:19-cv-1174-YGR, 2020 WL 4193374 at *8-10 (N.D. Cal. July 21, 2020)

The '359 Patent – Claim 14

“biometric signal” ('359 Patent, Claim 14)

Respondents' Construction

Correcting “the biometric signal” to be “a biometric signal” and applying the plain and ordinary meaning (i.e., a signal relating to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight).

Complainants' Construction

Correcting “the biometric signal” to be “the biological signal” and applying the plain and ordinary meaning (i.e., a signal that is associated with biological information of the user).



CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **OURA HEALTH OY RESPONDENTS CLAIM CONSTRUCTION DEMONSTRATIVE EXHIBITS** was served upon the following as indicated below on June 2, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*